HOW TO RENT IN JAMAICA

A GUIDE FOR TENANTS

Prepared with reference to the Rent Restriction Act

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This guide is general information for tenants of residential premises in Jamaica. It is not legal advice. Where the guide refers to "the Act" it means the Rent Restriction Act. Some premises are exempt from the Act; your landlord or agent should tell you whether your premises are controlled or exempt.

1. About this guide

(1) This guide explains, in plain language, what you should know before and during a tenancy of residential premises in Jamaica. It is provided as part of your tenancy pack and should be read together with your tenancy agreement.

(2) Residential lettings are governed by the **Rent Restriction Act** and by the terms of your tenancy agreement. The Act is administered by the **Rent Assessment Board**, which can assess rents, hear complaints and order refunds.

(3) Where the Act applies ("controlled premises"), certain terms are implied into every tenancy agreement whether or not they are written down (section 4 and the First Schedule to the Act). These cover repair, quiet enjoyment, rent and conduct.

(4) Keep this guide with your tenancy agreement, rent receipts and inventory for the whole of your tenancy.

2. Before signing a tenancy

(1) Before you agree to rent a property you should—

(a) view the property in person, or by live video if you are overseas;

(b) confirm that the person letting the property is the owner or is authorised in writing to let it;

(c) where an agent is used, check that the agent is registered with the Real Estate Board;

(d) ask whether the premises are controlled under the Act or hold a Certificate of Exemption;

(e) ask what the rent includes (water, electricity, gas, internet, garbage collection, maintenance or strata fees);

(f) read the whole tenancy agreement before signing and ask for anything unclear to be explained or changed.

(2) Your tenancy agreement should state at least—

(a) the names of the landlord and tenant and the address of the premises;

(b) the start date and the length of the term;

(c) the rent, the currency (JMD or USD), the due date and the method of payment;

(d) the amount of any deposit and the conditions for its return;

(e) who is responsible for utilities, repairs and maintenance;

(f) the notice required to end the tenancy.

(3) A landlord must not refuse, renew or continue a tenancy on the condition that no children will live with the tenant (section 4A).

(4) A landlord must not require a premium, fine, "key money" or any other payment in addition to the rent as a condition of granting, renewing or continuing a tenancy (section 24). Any such payment may be recoverable.

(5) Do not pay money to reserve a property you have not seen, and never pay without receiving a written receipt.

3. Rent and rent increases

(1) The rent is the amount agreed in your tenancy agreement. For controlled premises it must not exceed the rent permitted under the Act. Rent charged above the permitted amount is irrecoverable and, if paid, may be recovered by the tenant (section 20).

(2) You may ask your landlord for a written statement of the permitted rent. The landlord must supply it within fourteen days (section 23).

(3) For controlled premises, rent may be increased only on grounds allowed by the Act (section 21), including—

(a) improvements or structural alterations to the premises;

(b) increases in rates or taxes on the premises;

(c) a general percentage increase allowed by Ministerial order. The Rent Assessment Board advises that increases above **7.5% a year** require the Board's approval.

(4) For exempt premises, rent is usually reviewed at the end of the term or in line with a rent review clause in your agreement.

(5) If you believe your rent has been increased unlawfully, contact the Rent Assessment Board. The Board may order the landlord to refund excess rent (section 36).

4. Deposits and rent payments

(1) It is common practice for a landlord to take a refundable **security deposit**, usually equal to one month's rent (sometimes two months for furnished premises). The Act does not fix a maximum, but a deposit must not be used to disguise additional rent or a premium.

(2) The deposit should be returned at the end of the tenancy, less only lawful deductions for unpaid rent or utilities, or for damage beyond fair wear and tear. You should ask for an itemised list of any deductions.

(3) Pay rent in full and on the due date by the method stated in your agreement. Bank transfer or another traceable method is recommended.

(4) Your landlord should keep a **rent book** recording each payment, the tenant's name and any arrears. You are entitled to inspect it (section 29). Always obtain a written or electronic receipt for every payment.

(5) If you cannot pay your rent, speak to your landlord or agent before the due date and agree any arrangement in writing.

(6) Your landlord may recover the actual cost of water, electricity or gas supplied to you on production of the bill (section 24).

5. Tenant responsibilities

(1) Under your tenancy agreement and the covenants implied by the Act, you must—

(a) pay the rent on time;

(b) pay for utilities that are your responsibility under the agreement;

(c) take reasonable care of the premises, fixtures, furniture and appliances;

(d) keep the premises clean and in a sanitary condition;

(e) not cause a nuisance or annoyance to neighbours, or use the premises for an illegal or immoral purpose;

(f) not sublet or part with possession of the premises without your landlord’s consent;

(g) not carry on a business from a dwelling-house without your landlord’s consent;

(h) report repairs promptly and in writing;

(i) allow reasonable access for inspections and repairs; and

(j) give proper notice when you intend to leave.

6. Landlord responsibilities

(1) Under the Act and your tenancy agreement, your landlord must—

(a) allow you quiet enjoyment of the premises;

(b) keep the premises in a reasonable state of repair and fit to live in;

(c) pay the property taxes and rates on the premises;

(d) provide receipts and keep a rent book;

(e) supply a statement of the permitted rent on request;

(f) not increase the rent except as allowed by the Act;

(g) give a valid written notice to quit before seeking possession; and

(h) use the lawful process to recover possession and never evict you by force or harassment.

7. Repairs and maintenance

(1) Report any disrepair to your landlord or agent in writing as soon as you notice it, and keep a copy. Include photographs where possible.

(2) Your landlord is responsible for keeping the structure, roof, plumbing, electrics and supplied appliances in working order, unless your agreement lawfully says otherwise.

(3) You are responsible for minor day-to-day upkeep (for example light bulbs, keeping drains clear) and for repairing damage caused by you, your household or your visitors.

(4) In an emergency, such as flooding, a gas leak or an electrical fault, make the premises safe, contact the relevant utility or emergency service, then inform your landlord immediately.

(5) Do not withhold rent because of disrepair without first taking advice. Contact the Rent Assessment Board if repairs are not carried out.

8. Inspections and access

(1) Your landlord or agent may need access to inspect the premises or carry out repairs. Your tenancy agreement should set out how access is arranged.

(2) Except in an emergency, access should be at a reasonable time and after reasonable notice (commonly at least 24 hours).

(3) Entering the premises without your consent, or in a way that interferes with your quiet enjoyment, may amount to harassment under section 27 of the Act.

(4) At the start of the tenancy you should receive, or prepare with the landlord, an inventory and condition report. Take dated photographs and keep a copy.

9. Subletting and sharing

(1) You must not sublet the whole or part of the premises, or take in a lodger, without your landlord's consent. Unauthorised subletting is a ground on which a landlord may seek possession (section 25).

(2) Where you have exclusive use of part of a property and share other rooms (such as a kitchen or bathroom), your separate accommodation may still be protected as a dwelling-house under the Act (section 5).

(3) If you are a lawful sub-tenant and the head tenancy ends, you may become the tenant of the superior landlord on the same terms (section 28).

10. Ending a tenancy

(1) If you wish to leave, give written notice as required by your tenancy agreement. Where the agreement is silent, give at least one full rental month's notice.

(2) If you have a fixed-term agreement, you may be liable for the rent until the end of the term unless the agreement contains a break clause or the landlord agrees otherwise.

(3) Before you leave you should—

(a) pay all rent and utilities due and take final meter readings;

(b) clean the premises and remove all belongings;

(c) attend a final inspection and compare the condition with the inventory;

(d) return all keys and obtain a written acknowledgement; and

(e) provide details for the return of your deposit.

11. Notices to quit

(1) A notice to quit given by a landlord must—

(a) be in writing;

(b) state the reason for requiring possession (section 31); and

(c) give at least one full rental month's notice, expiring at the end of a rental period, or such longer period as the tenancy agreement requires.

(2) Reasons commonly relied on include—

(a) rent unpaid for thirty days or more;

(b) the premises being required by the landlord as a residence for the landlord or a dependent family member;

(c) the premises being required for repair, improvement or rebuilding; or

(d) breach of the tenancy agreement.

(3) If the notice is given for non-payment of rent and you pay the arrears in full before the notice expires, the notice ceases to have effect (section 31).

(4) You must continue to pay rent during the notice period.

(5) A notice to quit does not by itself allow the landlord to remove you. If you do not leave, the landlord must apply to the court. If you are unsure whether a notice is valid, contact the Rent Assessment Board promptly. Do not ignore it.

12. Eviction and possession

(1) A landlord may recover possession of controlled premises only by an order of the court, and only on a ground set out in section 25 of the Act. For most grounds the court must also be satisfied that it is reasonable to make the order.

(2) The grounds in section 25 include—

(a) rent lawfully due and unpaid for thirty days or more;

(b) breach of an obligation of the tenancy;

(c) nuisance or annoyance, illegal or immoral use, or damage to the premises;

(d) the premises being reasonably required by the landlord for his own occupation or that of a dependent family member or employee;

(e) the premises being required for repair, improvement, rebuilding or demolition, or for public purposes;

(f) unauthorised subletting, or unauthorised business use of a dwelling-house; and

(g) a tenancy linked to employment which has ended.

(3) It is an offence for any person to force a tenant to leave without a court order, or to do anything calculated to interfere with the tenant's quiet enjoyment (section 27). This includes—

(a) changing or removing locks, or barring doors;

(b) removing doors, windows or the roof;

(c) cutting off or tampering with water, electricity or gas;

(d) removing your belongings; and

(e) threats, intimidation or demands for favours of any kind.

(4) If this happens to you, record the details (dates, photographs, messages and witnesses) and report it to the Rent Assessment Board and, where necessary, the police.

13. Rent Assessment Board

(1) The Rent Assessment Board is the body that administers the Act. It can—

(a) register premises and determine the standard rent;

(b) grant or refuse applications for rent increases;

(c) hear complaints from tenants and landlords, including harassment;

(d) order the refund of excess rent and hear claims for the refund of security deposits; and

(e) advise on the validity of a notice to quit.

(2) Both landlord and tenant are usually consulted before the Board takes action. The Board recommends that disputes are brought to it before court action is considered.

(3) The Board's contact details are set out in section 15.

14. Where a tenant can get help

(1) **Your landlord or managing agent** — for repairs, payments and day-to-day questions. Put important matters in writing.

(2) **Rent Assessment Board** — for rent increases, notices to quit, harassment, deposits and disputes.

(3) **Real Estate Board** — for complaints about a real estate dealer or salesman.

(4) **Legal Aid Council** — for information about legal assistance if you cannot afford an attorney.

(5) **An attorney-at-law** — for advice on your particular situation, especially where court proceedings are threatened.

(6) **Jamaica Constabulary Force** — where there is violence, threats or unlawful removal of property.

15. Important contacts

Organisation	**Contact details**
Rent Assessment Board	The Towers, 25 Dominica Drive, Kingston 5 Tel: (876) 906-4100 / (876) 906-1765 Email: rentboard@megjc.gov.jm Monday to Friday, 8:30 a.m. – 4:00 p.m. rentassessmentboardjm.com
Police (emergency)	119
Fire / Ambulance	110
Managing agent	Sangsters Group Shop 7, 45 Main Street, Porus, Manchester, Jamaica JMDMR21 Tel: +1 876 277-5467 · WhatsApp: +44 7498 259095 Email: contact.us@sangstersgroup.com · www.sangstersgroup.com
Landlord	Name: _____ Tel: _____
Electricity (JPS) account no.	_____
Water (NWC) account no.	_____
Out-of-hours repairs	_____

Contact details are correct at the date of this edition and should be checked before use.

16. Tenant acknowledgement

I/We confirm that I/we have received a copy of *How to Rent in Jamaica* before signing the tenancy agreement for the premises named below, and that I/we have had the opportunity to read it and ask questions.

Property address _____

_____

Tenancy start date _____

Tenant 1 — full name _____

Signature _____

Date _____

Tenant 2 — full name _____

Signature _____

Date _____

Landlord / Agent — name _____

On behalf of _____

Signature _____

Date _____

Method of delivery (tick one)	[ ] By hand [ ] By email [ ] Via tenant portal

One signed copy to be retained by the tenant and one placed on the tenancy file.

FIRST SCHEDULE

Documents checklist

	Document	**Notes**
	Government-issued photo ID	Passport, driver’s licence or national ID
	Taxpayer Registration Number (TRN)	Commonly requested by landlords and agents
	Proof of income	Job letter, recent payslips or 3–6 months’ bank statements
	References	Previous landlord and employer or character reference
	Proof of address	Recent utility bill or bank statement
	Guarantor details (if required)	ID and proof of income for the guarantor
	Company letter (if relocating)	Confirms the employer’s responsibility for rent
	Signed tenancy agreement	Keep a complete signed copy
	Receipts	Deposit, first month’s rent and any other payments

SECOND SCHEDULE

Move-in checklist

	Item	**Done**
	Inventory and condition report signed by both parties	
	Dated photographs and video of each room taken and shared	
	Electricity and water meter readings recorded	
	Utilities transferred or set up (JPS, NWC, internet, gas)	
	Locks, keys and security grilles checked; number of keys recorded	
	Taps, toilets, water heater, pump/tank, lights, sockets and AC tested	
	Smoke alarm and fire extinguisher (if provided) checked	
	Emergency and out-of-hours contacts saved	
	Contents insurance arranged	

This guide is general information as at September 2026 and is not legal advice. The law may change and some premises are exempt from the Rent Restriction Act. For advice on your situation contact the Rent Assessment Board or a qualified Jamaican attorney-at-law.